



Notification Waiver Determination

Sinopec – Park Fuels

Acquisition	Sinopec (Hong Kong) Limited (Sinopec) applied for a notification waiver in respect of its proposed acquisition of 75% of the issued and outstanding shares of Bintan Pty Limited and Australian Terminals Pty Limited and their respective subsidiaries (which are collectively the holding companies of the Park Fuels business), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) not to make the notification waiver determination applied for.
Date of determination	24 September 2026

Parties to the Acquisition	The acquirer, Sinopec, is a subsidiary of the China Petrochemical Corporation, a Chinese, state-owned oil and gas enterprise (together with its subsidiaries, Sinopec Group). Sinopec Group's activities include oil and gas exploration and production, oil refining, petrochemicals and chemical products, and the import and export of crude oil, natural gas, refining oil products, and chemicals. In Australia, Sinopec Group (through its subsidiaries) is engaged in the wholesale and retail supply of fuel products in Victoria and Western Australia, as well as the supply of coal, petrochemical products, and equipment and materials produced by Sinopec Group. The target, Park Fuels, is an Australian fuel supply company headquartered in Albion Park Rail, New South Wales. Park Fuels imports fuel into Australia via its terminal operations at Kooragang Island and Port Kembla in New South Wales, and offers fuel terminal and storage services to third parties from these locations. Park Fuels is also engaged in the supply of fuel transport and logistics services, the wholesale supply of fuel, primarily in New South Wales and Queensland, and operates fuel retail sites in various locations across New South Wales.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (ACCC) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the Act. Based on the information provided in the application, including the parties' (and their connected entities) revenues in Australia, the ACCC considers it is likely that, if the Acquisition were put into effect, the notification thresholds would be met.

	The ACCC is unable to reach a view that the Acquisition would not be likely to raise competition issues in any market based on the information provided, given: a. there are multiple potential vertical relationships between the products and services supplied by the parties in Australia, and the impact of the Acquisition on the merged entity's ability and/or incentive to foreclose rivals is uncertain b. the extent to which the merged entity would likely be constrained by alternative providers of fuel terminal and storage services in New South Wales or elsewhere in Australia is unclear c. it is unclear whether Sinopec Group would otherwise expand its operations in Australia absent the Acquisition and therefore, whether the Acquisition may result in a loss of future competition. The ACCC considers that the Acquisition warrants consideration through the notification process, including via consultation with third parties. Given the above, the ACCC has determined not to make the notification waiver determination applied for. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by a division of the Commission constituted by a direction issued pursuant to section 19 of the Act